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Case Number: 25STCV36007 Hearing Date: August 21, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Petition for Approval
of Compromise of Minor's Claim

The Petition for Approval of Compromise of Minor's Claim is denied without
prejudice.

BACKGROUND

Plaintiffs Ricardo M. Cardenas (Richard), Alondra Gonzalez (Petitioner),
and Vincent V. Cardenas (Claimant), a minor, by and through his guardian ad
litem Alondra Gonzalez, filed this action against Jonathan Ceja and Jessica
Mejia Romero. Plaintiffs allege that Ceja ran a red light and struck the
vehicle in which the three Plaintiffs were traveling.

The causes of action are: (1) Motor Vehicle; and (2) General Negligence.

Petitioner filed a Petition for Approval of Compromise of Minor's Claim on
Claimant's behalf.

LEGAL STANDARD

A minor may compromise a claim only with the approval of the court in
which the action is pending. (Code Civ. Proc., § 372, subd. (a).) "[W]ithout
trial court approval of the proposed compromise of the ward's claim, the
settlement cannot be valid." (Scruton v.
Korean Air Lines Co. (1995) 39 Cal.App.4th 1596, 1606.) "[T]he protective
role the court generally assumes in cases involving minors, [is] a role to
assure that whatever is done is in the minor's best interests.... [I]ts primary

concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (Goldberg v. Superior Court (1994) 23 Cal.App.4th 1378, 1382.)

A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with California Rules of Court rules 7.950, 7.951, and 7.952. (See Cal. Rules of Court, rule 3.1384(a).) The petition must be made on Judicial Council form MC-350, must be verified, and must contain "a full disclosure of all information that has any bearing upon the reasonableness of the compromise, covenant, settlement, or disposition." (Cal. Rules of Court, rule 7.950.)

Where the court approves a compromise of a minor's disputed claim that provides for the payment of money for the minor's benefit, the court "shall make a further order authorizing and directing that reasonable expenses, medical or otherwise and including reimbursement to a parent, guardian, or conservator, costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or person with a disability." (Prob. Code, § 3601, subd. (a); see id., § 3600.)

Where no guardianship of the estate of the minor exists, "the remaining balance of the money and other property (after payment of all expenses, costs, and fees as approved and allowed by the court under Section 3601) shall be paid, delivered, deposited, or invested as provided in this article." (Prob. Code, § 3610.) The court "shall, upon application of counsel for the minor ..., order any one or more of" the dispositions Probate Code section 3611 lists. (Prob. Code, § 3611.)

ANALYSIS

Petitioner asks the Court to approve a compromise of Claimant's claim for \$8,470.00. From those proceeds Petitioner asks that \$3,010.00 in medical expenses, \$2,117.50 in attorney fees, and \$161.67 in costs be paid, and that the \$3,180.83 balance go to the guardian of Claimant's estate. (Pet., items 10a, 13a, 13b, 16, 18a(1).)

I. Injury Documentation

Petitioner states that Claimant suffered sharp neck and back pain and went

to the emergency room at Community Hospital of Huntington Park. (Pet., items 6, 7.) Petitioner further states that Claimant received no further treatment and has recovered completely with no permanent injuries. (Pet., items 7, 8a.)

Item 8 of the mandatory form directs that a doctor's report containing a diagnosis of the claimant's injuries or a prognosis for recovery, along with a report of the claimant's current condition, be attached as Attachment 8. Attachment 8 is captioned "Medical Bill and Hospital Discharge." It consists of a one-page hospital billing statement, and no discharge record follows it. The statement lists three spinal radiographs, a level three emergency room visit, and a pharmacy charge. (Attachment 8.)

Nothing in the papers contains a diagnosis, a prognosis, or a report of Claimant's current condition. Approval binds Claimant, who will never recover more from the settling defendants even if his injuries turn out to be more serious than they now appear. (Pet., item 9.) The Court's "primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (Goldberg, *supra*, 23 Cal.App.4th at p. 1382.) A self-pay invoice for one emergency department visit is not the report item 8 requires, and it is not the full disclosure rule 7.950 requires on the question the compromise turns on.

Without the item 8 report the Court cannot credit the representation that Claimant recovered completely.

II. Settlement Terms

Petitioner entered Allstate Insurance and \$8,470.00 at item 10b, which calls for the defendants who have offered to pay and the amount each has offered. (Pet., item 10b.) Allstate Insurance is not a defendant in this action, so the form's list of settling defendants is empty. Attachment 11b(6) states that "Defendant Romero, through her insurance company, tendered the policy in the form of three settlements." The same attachment describes the policy as "Defendant Corona's automobile policy." No Corona appears in the caption or in any other paper. The Complaint alleges that Ceja operated the vehicle that struck Plaintiffs. (Compl., MV-2a.) No paper in the petition names Ceja as a settling party, and the papers contain no release and no settlement agreement.

Item 10c describes the terms as \$8,470.00 "to be paid for full after

release of all claims by plaintiffs arising out of the December 15, 2023 incident.” (Pet., item 10c.) Item 9 warns Claimant that he will never recover more from “the settling defendants named below.” The only name below it is a nonparty. An order approving a compromise fixes to whom the minor gives up his claims. This petition does not identify them.

The attachments state that the applicable policy had \$100,000.00 in limits, divided into three settlements, \$8,470.00 to Claimant, \$50,000.00 to Petitioner, and \$41,530.00 to Richard. (Attachments 11b(3), 11b(6).) Item 11b(6) calls for the reasons for the apportionment of the settlement payments between the claimant and each other plaintiff. Attachment 11b(6) recites the facts of the incident and sets the three post-reduction medical totals beside the three settlement figures, without stating why the settlements divide as they do. Attachment 11b(3) states that portions of the limits were allocated to other claimants “[d]ue to the number of claimants and the injuries sustained by others.” It states that “[a]fter those payments, \$8,470 remains available to Vincent V Cardenas,” and that the compromise “reflects proportionate shares of the remaining policy limits.”

The other claimants Attachment 11b(3) invokes are the two adult plaintiffs in this action. Item 11b(1) puts the total offered to persons other than Claimant at \$91,530.00, item 11b(5) names Petitioner and Ricardo, and those two settlements together with Claimant’s exhaust the \$100,000.00 limit. Item 11b(6) requires reasons for how they were divided, and on that the attachment says only that the shares are proportionate, without saying proportionate to what. The only quantitative measure in the papers is the plaintiffs’ post-reduction medical expenses, and the division does not follow it. Against \$21,477.30 in combined post-reduction medical expenses, Ricardo accounts for roughly 24 percent of the medical total and takes roughly 42 percent of the fund. Claimant accounts for roughly 14 percent of the medical total and takes roughly 8 percent. (Attachment 11b(6).) Medical expenses are not the measure of a personal injury claim, and the Court does not hold that these shares must follow them. The Court references the medical bills just to highlight the only quantitative information provided. The attachments assert proportionality and identify no proportion the division reflects.

Petitioner is Claimant’s parent and guardian ad litem, and is also a plaintiff drawing \$50,000.00 from the same exhausted limit. (Pet., items 1, 11b(3), 11b(5).) Item 11b(2) asks whether Petitioner claims against Claimant’s recovery apart from the item 14 reimbursement, and the petition says no. (Pet.,

item 11b(2).) This apportionment presents a different question, whether Petitioner's own share, drawn from the same limit, was set at Claimant's expense. Item 11b(6) exists to let a court decide that question. Without the reasons it calls for, the Court cannot find the apportionment fair to Claimant.

III. Medical Expenses

Petitioner states in item 12a(5) that the total amount of statutory or contractual liens is \$0.00. Item 12b(5)(a)(ii) states that one or more statutory or contractual liens of medical service providers total \$3,010.00, and that the lienholders have agreed to accept that sum in full satisfaction. (Pet., items 12a(5), 12b(5)(a)(ii).) The two statements cannot both be right.

IV. Delivery of Proceeds

Petitioner asks that \$3,180.83 be paid to the guardian or conservator of the estate. (Pet., item 18a(1).) Item 18a states that a guardianship of the estate of the minor was filed in this action by Petitioner. (Pet., item 18a.) The Court takes judicial notice of its own records, which show one appointment for Alondra Gonzalez, as guardian ad litem in this action, and no guardianship of Claimant's estate filed in this court. (Evid. Code, § 452, subd. (d).) A guardian ad litem appointed to represent a minor in a pending action is not a guardian of the estate; the statute makes the two alternatives. (Code Civ. Proc., § 372, subd. (a)(1) [a minor "shall appear either by a guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending,"].) Attachment 18a(1) states that the proceeds "will be distributed by check to Guardian Ad Litem Alondra Gonzalez." Probate Code section 3611 lists the dispositions the Court may order, and a check to a guardian ad litem is not one of them.

The section 3611 list does include a disposition fit for a balance of this size. Subdivision (e) allows the remaining balance to be paid to a parent of the minor without bond where it does not exceed \$5,000.00, "upon the terms and under the conditions specified in Article 1 (commencing with Section 3400) of Chapter 2." (Prob. Code, § 3611, subd. (e).) Those conditions require that the minor's total estate, including the money to be delivered, not exceed \$5,000.00 in value, and that the parent give the person making the delivery "written assurance, verified by the oath of such parent," to that effect. (Prob. Code, § 3401, subd. (c).) Petitioner completed item 18a instead, and gave no assurance.

Based on this and the other defects noted above, the Court will continue the hearing to permit Petitioner to file an amended petition and attachments.

CONCLUSION

The Petition for Approval of Compromise of Minor's Claim is continued to a date the Court will select in consultation with counsel.